TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: July 23, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**.

Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	**Becerra vs. The Pacific Labor Group, Inc.** **2025-01484712**	**Motion to Compel Arbitration** Defendants The Pacific Labor Group, Inc. and Pacific Modular Alliance Inc.'s motion to compel arbitration is DENIED. Defendants contend two arbitration agreements govern plaintiff's claims in this action: (1) the arbitration agreement in Article VI (as extended by Appendix M) of the Southern California Master Labor Agreement between United General Contractors, Inc. and the Southwest Regional Council of Carpenters and Local Unions in the Twelve Southern California Counties and Nevada Affiliated with the United Brotherhood of Carpenters and Joiners of America for 2022-2026 ("CBA") (see Schlecht Decl. ¶¶ 2, 13-14, Ex. A ["relevant excerpts" from CBA]); and (2) the arbitration provision in plaintiff's employment agreement with Pacific Labor Group, Inc. dated 1/30/23. (See Schlecht Decl. ¶¶ 3, 15, Ex. B [employment agreement].) The CBA provides for arbitration through the "Independent Contractors Grievance and Arbitration Trust," which maintains its own procedures to process grievances and "panel of independent and neutral arbitrators" with the authority "to hear and determine such grievances and disputes" and "issue a final and binding award, including appropriate remedies." (Schlecht Decl. at Ex. A [CBA at Article VI, Appendix M].) The arbitration provision in the employment agreement provides for binding arbitration of all claims arising out of plaintiff's employment "pursuant to the Federal Arbitration Act, 9 U.S.C. § 1-16, to the fullest extent permitted by law...." (Schlecht Decl. at Ex. B [employment agreement § 4].) Defendants did not bring a motion to compel pursuant to one of these agreements at the onset of litigation. Instead, they entered into a "Joint Stipulation for Binding Arbitration and Order Thereon" (stipulation) with plaintiff agreeing to arbitrate pursuant to different terms. Specifically, they agreed to submit the matter to binding arbitration pursuant to the terms of plaintiff's employment agreement, but "in accordance with the procedures of the California Arbitration Act" rather than the FAA. (ROA No. 19 [stip. & order]; Schlecht Decl. at Ex. C [same; see recitals ¶¶ 2, 4-6 & stip. ¶ 1].) They also agreed that the "arbitrator shall be mutually agreed upon the parties," and that if they "cannot agree on an arbitrator," the parties "shall use a strike list from JAMS, ADR Services or Judicate West," and "shall also meet and confer on

whether the arbitrator shall be appointed by the union of which Plaintiff is a member....” (Schlecht Decl. at Ex. C [stip. ¶ 2].)

On 7/11/25, the court entered an order pursuant to and explicitly based on this stipulation, requiring the parties to submit their claims to binding arbitration as agreed. (Schlecht Decl. at Ex. C [stip. & order, p. 4].)

That was over a year ago now. Plaintiff subsequently commenced arbitration with JAMS on 9/9/25. (Schlecht Decl. ¶¶ 5, 20, Ex. D; Hartman Decl. ¶¶ 10-13, Exs. 3-5.) In October 2025, the parties agreed to stay arbitration to pursue private mediation, and mediation was eventually had on 4/22/26, but it was unsuccessful. (Hartman Decl. ¶¶ 14-15.) As such, JAMS lifted the arbitration stay on 6/16/26, confirmed the commencement of arbitration as of 6/23/26, and the parties began the strike and rank process for selecting an arbitrator, which currently remains in progress. (*Id.* ¶¶ 15-18.)

After agreeing and being ordered to arbitrate pursuant to the employment agreement as modified by the parties’ stipulation, defendants now contend plaintiff should be required to arbitrate under the terms of the CBA “to ensure that this dispute is resolved in the forum the CBA requires” (Mtn. P&As at p. 2), claiming that the parties’ stipulation “preserved the question of whether arbitration should proceed under the CBA or the Employment Agreement.” (Schlecht Decl. ¶ 19; see *id.* ¶ 4, Ex. C [stip. & order].)

Defendants’ contentions are not well taken. Contrary to the assertions in defense counsel’s sworn declaration, the parties did **not** “preserve[] the question of whether arbitration should proceed under the CBA or the Employment Agreement” (Schlecht Decl. ¶ 19) in their stipulation. (See *id.* ¶ 4, Ex. C [stip. & order].) Instead, they chose to proceed under the employment agreement as modified by their stipulation. The stipulation states in no uncertain terms that the parties have agreed to submit this matter to binding arbitration “pursuant to the Employment Agreement” and “in accordance with the procedures of the California Arbitration Act,” and does not purport to preserve the right to arbitrate pursuant to the CBA, which imposes entirely different rules and procedures, even though the parties clearly knew of the CBA at the time. (*Id.* at Ex. C [in particular, recitals ¶¶ 2, 4, 5 & stip. ¶¶ 1-2]; see *id.* ¶ 19 [declaring that paragraph 2 of the stipulation refers to the CBA].)

		At best, the parties stipulated to "meet and confer" as to whether "the arbitrator" should be "appointed by the union of which the Plaintiff is a member." But the parties also agreed that if "the Parties cannot agree on an arbitrator the Parties shall use a strike list from JAMS, ADR Services or Judicate West," and it is clear from the parties' briefing that they do not agree to an arbitrator selected by the union or with proceeding with such an arbitrator under the terms of the CBA. Thus, per the parties' stipulation, the arbitrator must be determined by a strike list from JAMS, ADR Services or Judicate West. This is how the parties have been proceeding to date, how plaintiff wishes to proceed, and how the parties should continue to proceed (i.e., pursuant to the court order entered pursuant to stipulation on 7/11/25), as defendants have failed to provide any authority allowing them to renege on their post-dispute stipulation or the court order entered pursuant to that stipulation. (See, e.g., *Law Offices of Ian Herzog v. Law Offices of Joseph M. Fredrics* (1998) 61 Cal.App.4th 672, 678-680 [a party who expressly agrees to an action taken by the trial court or in the trial proceedings, such as by signing a stipulation inducing the action, cannot challenge that action in later proceedings]; see also *B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 949-950 [because a subsequent written contract alters the terms of a previous contract, updated terms control].) Accordingly, the motion is denied. The parties shall proceed with arbitration as previously ordered by the court on 7/11/25. Defendants shall give notice.
2	**Cerni vs. Karen A. Sunday & Associates, Inc.** **2026-01561774**	**Motion to Lift the Discovery Stay** Plaintiff Joseph S. Cerni's Motion to Lift Stay is GRANTED in part. On April 9, 2026, Plaintiff filed the Complaint alleging a cause of action for malicious prosecution and abuse of process. On June 16, 2026, Defendant Karen A. Sunday & Associates, Inc. filed an anti-SLAPP motion. The filing of the anti-SLAPP motions stays discovery. (Code Civ. Proc., § 425.16(g).) Plaintiff files this motion to lift the discovery stay so that he can conduct discovery related to Sunday's claim that she told her lawyers everything and relied on their advice to sue Plaintiff for a commission on the sale of commercial property without a written contract.

		Section 425.16 subd. (g) provides as follows: "All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and **for good cause shown**, may order that specified discovery be conducted notwithstanding this subdivision." (emphasis added) "Decisions that have considered what constitutes such a showing of good cause have described it as a showing that a defendant or witness possesses evidence needed by plaintiff to establish a prima facie case. The showing should include some explanation of what additional facts [plaintiff] expects to uncover. Only in these circumstances is the discretion under section 425.16, subdivision (g) to be 'liberally exercise[d].' Discovery may not be obtained merely to 'test' the opponent's declarations." (*1-800 Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 593.) *Malicious Prosecution* To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff's favor; (2) was brought without probable cause; and (3) was initiated with malice. (*Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50.) "In opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial." (*HMS Capital, Inc. v. Lawyers Title Co.* (2004) 118 Cal.App.4th 204, 212.) Sunday contests both probable cause and malice with a single defense – advice of counsel. Plaintiff argues he is unable to rebut this defense, and establish a prima facie case, without conducting discovery to determine what facts Sunday disclosed to her counsel regarding the alleged commission agreement. To allow Sunday's declaration that she disclosed all material facts to The Walker Law Firm (her first lawyers) and later to Stone LLP and relied in good faith that her claims were tenable, without challenge, would be unjust. Moreover, Sunday and her counsel are in possession of any documents or information that would prove or disprove her claim, thus necessitating the need for discovery prior to the hearing on Sunday's anti-SLAPP. Requests for admission to Defendant Sunday and The Walker Law Firm, APC directed to Sunday's

		possession of the Purchase Agreement and the letters of intent before the Underlying Action was filed. Sunday contends that Plaintiff has failed to demonstrate "good cause" for the requested discovery. More is needed that a plaintiff's assertion that discovery might help, as Plaintiff's motion argues. Plaintiff cannot obtain discovery simply to test Sunday's declaration. (See *1-800 Contacts*, supra, 107 Cal.App.4th at 593.) Additionally, Sunday argues that whether Plaintiff is able to disprove the advice of counsel defense is immaterial to the determination of the anti-SLAPP. Malice may not be inferred from the mere fact that the prior action was unsuccessful, or even that it lacked probable cause. (*Downey Venture v. LMI Ins. Co*. (1998) 66 Cal.App.4th 478, 498–499.) To establish malice, a plaintiff must show that the prior action was initiated or maintained primarily out of hostility or ill will, or for some other improper purpose. (*Sycamore Ridge Apartments, LLC v. Naumann* (2007) 157 Cal.App.4th 1385, 1407.) Sunday has denied under penalty of perjury any such motive. The California Supreme Court, however, has also stated that [m]alice "may range anywhere from open hostility to indifference. Malice may also be inferred from the facts establishing lack of probable cause." (*Soukup v. Law Offices of Herbert Huff* (2006) 39 Cal.4th 260, 292.) Therefore, Sunday's denial of a malicious motive is insufficient in and of itself to negate malice. Further, to establish a probability of prevailing, the plaintiff need only establish that his or her claim has "minimal merit" to avoid being stricken as a SLAPP. (Id. at 291.) Thus, if Plaintiff obtains information through discovery that defeats the advice of counsel defense and demonstrates Sunday and/or co-Defendants lacked probable cause, it may be sufficient to establish a probability of prevailing. As such, good cause exists to lift the discovery stay in this case. Sunday argues the scope of the discovery sought is too broad and is not tailored to the elements of Plaintiff's prima facie case. The Court agrees and will limit the discovery permitted. *Abuse of Process* "A claim for abuse of process arises when a party (1) for ulterior reasons (2) misuses the court's process for a purpose other than the purpose for which the process was designed." (*Ramona Unified*

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<tr><td></td><td></td><td>School Dist. v. Tsiknas (2005) 135 Cal.App.4th 510, 520.) “Although initiating a meritless claim for an improper purpose can expose a party to damages for malicious prosecution, the mere initiation of a lawsuit, even for an improper purpose, does not support a claim for abuse of process.” (Ibid.) Abuse of process claims include lawsuits involving improper uses of the tools afforded litigants, such as improper use of discovery, service of wrongful attachments, or obtaining a temporary restraining order to perpetuate a false representation concerning a party. (See Maleti v. Wickers (2022) 82 Cal.App.5th 181, 230.)

In opposition, Sunday argues the discovery sought is relevant only to the malicious prosecution cause of action and not the abuse of process cause of action. The Court agrees. Plaintiff should be able to establish a prima facie case without the need for additional discovery.

Accordingly, the lifting of the discovery stay shall be limited to Plaintiff’s claim for malicious prosecution and not his claim for abuse of process.

Based on the foregoing, the Court Orders as follows:

1. The discovery stay is lifted to allow for limited discovery related to Plaintiff’s claim for malicious prosecution only. No discovery will be allowed for his abuse of process claim.
2. Discovery shall be limited to 10 interrogatories and 10 document demands on each Defendant. Service of the discovery and responses shall be in accordance with the Code.
3. The hearings on defendant Sunday & Associates’ anti-SLAPP motion (ROA 40) and defendants Stone LLP, Elliot H. Stone, and Robert S. Throckmorton’s anti-SLAPP motion (ROA 57) are continued to <u>November 12, 2026 at 8:30 a.m. in Department C44</u>

Clerk to give notice.</td></tr>
<tr><td>3</td><td>Collins vs. Kaiser Foundation Health Plan, Inc.

2023-01361496</td><td>Motion for Summary Judgment and/or Adjudication

Continued. See stipulation and order filed 6/26/26 (ROA 114).</td></tr>
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4	**Francisco Ramirez Guillen vs. FCA US LLC** **2025-01460037**	**Motion for Attorney Fees** Plaintiff J Jesus Francisco Ramirez Guillen's motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiffs is awarded attorney fees in the amount of $15,833.00, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party's attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; *Nishiki v. Danko Meredith, APC* (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) But the paralegal rate claimed appears excessive, absent evidence of paralegal experience and/or qualifications justifying a $215.00 hourly rate. The court awards paralegal fees at $150.00 per hour instead. The court has also somewhat reduced the time claimed by moving party's attorneys for task that appear clerical and/or administrative in nature, as well as time spent by partners for reviewing / revising the motion to compel, which review time appears somewhat excessive despite its somewhat novel nature. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [court's broad authority to determine reasonable fees]; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel's hourly rate]; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for

		"researching and calendaring all deadlines"].) Otherwise, after review of moving parties' billing records (Ex. 11 to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. 12 to motion; ROA 51), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See *Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 457 ["In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;" other internal citations omitted.) To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery. Moving party shall give notice.
5	**Hoag Memorial Hospital Presbyterian vs. Monarch Health Plan, Inc.** **2026-01546114**	**Demurrer to First Amended Complaint** Defendants Monarch Health Plan, Inc., Optum Care Management, LLC and Optum, Inc.'s demurrer to Plaintiff Hoag Memorial Hospital Presbyterian's First Amended Complaint is SUSTAINED in part. (Code Civ. Proc. §430.10, subd. (e).) The special demurrer for uncertainty is OVERRULED. (Code Civ. Proc. §430.10, subd. (f).) The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. (*Khoury v. Maly's of California Inc.* (1993) 14 Cal.App.4th 612, 616.) Defendants argue a special demurrer lies because the allegations of the FAC are made against all Defendants collectively. This defect in the pleading does not preclude any Defendant from intelligently responding to the FAC. The allegations of the FAC can be clarified through discovery. <u>Third Cause of Action for Quantum Meruit:</u> Defendant **Monarch Health Plan, Inc.'s** demurrer to the **Third Cause of Action for Quantum Meruit** is **OVERRULED.** Monarch argues that a cause of action for quantum meruit cannot be stated because the FAC alleges the existence of an enforceable contract. Since this cause of action is pleaded alternative, it may be validly pleaded notwithstanding the allegation of a binding contract between Plaintiff and Monarch. (See *Newport Harbor*

		Ventures, LLC v. Morris Cerullo World Evangelism (2016) 6 Cal.App.5th 1207, 1222-1223 ["When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations … Thus, a plaintiff may plead inconsistent causes of action for breach of contract and common count].) Defendants **Optum Care Management, LLC and Optum, Inc.'s (Optum Defendants)** demurrer to the **Third Cause of Action for Quantum Meruit** is **SUSTAINED.** (Code Civ. Proc. §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Allegation of new or additional causes of action is not within the scope of leave to amend. Should Plaintiff seek to allege a new cause of action, Plaintiff shall first seek leave of court via noticed motion. The elements of a cause of action for quantum meruit are: (1) the plaintiff acted pursuant to an express or implied request for services by the defendant, and (2) the services rendered benefited the defendant. (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 248.) Plaintiff asserts that the Optum Defendants are liable under a theory of quantum meruit on the ground that the Optum Defendants benefited from causing Monarch to clawback payments from Plaintiff for services rendered to Monarch's members. These allegations do not establish that any services rendered by Plaintiff to Monarch's members benefited the Optum Defendants. Any benefit conferred upon the Optum Defendants by Plaintiff was merely incidental to the Optum Defendants' relationship with Monarch. Accordingly, the demurrer to this cause of action is SUSTAINED. <u>Fourth Cause of Action for Intentional Interference with Contract as to the Optum Defendants:</u> Defendants **Optum Care Management, LLC and Optum, Inc.'s (Optum Defendants)** demurrer to the **Fourth Cause of Action for Intentional Interference with Contract** is **SUSTAINED.** (Code Civ. Proc. §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Allegation of new or additional causes of action is not within the scope of leave to amend. Should Plaintiff seek to allege a new cause of action, Plaintiff shall first seek leave of court via noticed motion.

		The elements of a cause of action for intentional interference with contractual relations are: (1) a valid contract between the complainant and a third party; (2) the defendant's knowledge of the contract; (3) Intentional conduct on the part of the defendant that was intended to or would necessarily result in a breach or disruption of the contractual relationship; (4) an actual breach or disruption of the contractual relationship; and (5) resulting damages. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 55.) Defendant argues that Plaintiff's cause of action fails because (1) the FAC admits that the Optum Defendants were not a stranger to the underlying contract that was allegedly interfered with and (2) the FAC fails to allege the element of intent. Plaintiff argues that the FAC alleges the Optum Defendants are strangers to the contract because the FAC alleges the Optum Defendants acted beyond the scope of their agency by initiating and conducting the retrospective claim audits and providing Monarch with a pretense to seek recovery of payments made to Plaintiff. Generally, the representative of a contracting party may not be held liable for intentional interference with the contractual relationship. (See *Mintz v. Blue Cross of California* (2009) 172 Cal.App.4th 1594, 1605-1606.) Plaintiff's attempt to distinguish *Mintz* is not persuasive. Plaintiff reasons that the Optum Defendants necessarily exceeded the scope of their representation of Monarch by conducting audits and causing Monarch to recoup alleged overpayments made to Plaintiff. Plaintiff argues that since the Letter of Agreement (LOA) does not contemplate retroactive alterations to the agreed upon payment terms, Optum could not possibly have been acting as the representative of Monarch in causing Monarch to breach the LOA. This strained reasoning is not at all persuasive. If Plaintiff's position were adopted, the general rule against liability of the representative of a contracting party for intentional interference would be turned on its head. Moreover, the allegations of the FAC indicate that the Optum Defendants were not strangers to the contract. The alleged wrongful conduct attributed to the Optum Defendants is within the scope of the administrative services Optum provided to Monarch with respect to the LOA. In fact, the conduct attributed to the Optum Defendants is the same conduct Plaintiff asserts is the breach of the contract. While Plaintiff alleges the legal conclusion

		that the Optum Defendants were strangers to the LOA, the facts alleged in the FAC do not warrant such a conclusion. Accordingly, the demurrer to this cause of action is SUSTAINED. *Case Management Conference is set December 11, 2026 at 8:30 a.m. in Department C44.* Defendants shall provide notice of this ruling.
6	**Kiani vs. Koffey** **2025-01484637**	**Motion to Seal (ROA 247)** Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act requires a party seeking the imposition of monetary sanctions to disclose the negotiated hourly rate between the attorney and client. The relevant inquiry for purposes of determining the amount of monetary sanctions is the reasonable value of the time expended in conjunction with the discovery motion practice. Thus, all Plaintiff is called to do is identify facts justifying the amount of monetary sanctions sought. The particular hourly rate agreed upon between Kiani and his lawyers is not necessary information to make such a determination. The clerk is directed to return the unredacted declaration of Youzhihang Deng in support of the Motion to Compel Further Responses to Requests for Production and for Sanctions (ROA 234) to Plaintiff. Plaintiff has 10 days to file a revised declaration without redactions that either (1) provides the information regarding the hourly rates charged and time spent on the motions or (2) provides some other factual basis for the Court to assess the request for monetary sanctions. Plaintiff shall provide notice.
7	**Kiani vs. Masimo Corporation** **2024-01426785**	**Motion to Seal (ROA 512)** Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act

		requires a party seeking the imposition of monetary sanctions to disclose the negotiated hourly rate between the attorney and client. The relevant inquiry for purposes of determining the amount of monetary sanctions is the reasonable value of the time expended in conjunction with the discovery motion practice. Thus, all Plaintiff is called to do is identify facts justifying the amount of monetary sanctions sought. The particular hourly rate agreed upon between Kiani and his lawyers is not necessary information to make such a determination. The clerk is directed to return the unredacted declaration of Youzhihang Deng in support of the Motion to Compel Compliance with Deposition Subpoenas and for Sanctions (ROA 520) to Plaintiff. Plaintiff has 10 days to file a revised declaration without redactions that either (1) provides the information regarding the hourly rates charged and time spent on the motions or (2) provides some other factual basis for the Court to assess the request for monetary sanctions. Plaintiff shall provide notice.
8	**Matassa vs. Ramirez** **2025-01514585**	**Motion for Preference** *Vacated. See minute order dated 7/21/26 (ROA 110).*
9	**Rutledge vs. California Civil Rights Department** **2026-01543235**	**Petition for Writ** *Continued. See minute order dated 7/1/26 (ROA 33).*
10	**Seyedsalehi vs. Mercedes-Benz U.S.A, LLC** **2025-01459962**	**Motion to Set Aside/Vacate** *Vacated. See notice filed 7/2/26 (ROA 49).*
11	**Woo vs. General Motors, LLC** **2025-01518945**	**Motion for Attorney Fees** Plaintiff June Woo's Motion for Attorney's Fees is GRANTED in part and DENIED in part. <u>Prevailing Party:</u> Attorney's fees are authorized by contract, statute, or law. (See C.C.P. section 1033.5(a)(10)(A),(B) & (C).) The Song-Beverly Act provides as follows: "If the buyer prevails in an action under

		this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) Plaintiff accepted Defendant General Motors, LLC (“GM”) Offer to Plaintiff to Compromise pursuant to Code of Civil Procedure Section 998. (Woo Supp. Decl. ¶ 3, Ex.) Pursuant to the 998 offer GM agreed that Plaintiffs were the prevailing party and entitled to attorneys’ fees, costs, and expenses pursuant to the Song-Beverly Act. (Woo Decl., ¶ 5, Ex. 1.) Therefore, Plaintiff is the prevailing party entitled to attorney fees. <u>Amount of Attorneys’ Fees</u>: “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid. (citation omitted).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. In the case of contingency fee arrangements, a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys. [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were ... reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 (cleaned up).)

Here, Plaintiff June Woo seeks attorney fees, costs, and expenses in the total amount of $17,706.25, consisting of (1) $15,565 in unadorned attorney fees; (2) a 1.1 multiplier resulting in an additional $1,556.50; and (3) $584.75 in costs and expenses.

GM does not challenge the hourly rates. Rather, GM challenges the total number of billable hours claimed by Plaintiff's attorneys. GM contends the 28.3 hours billed for a case that was settled in less than four months is unreasonable, especially based on counsels' use of templates to create the documents in this case, specifically, templated complaint, discovery responses, and attorney fees motion.

Regarding GM's objections, the Court reduces the seven hours claimed by Plaintiff's counsel for reviewing GM's opposition to the fee motion, drafting a reply and attending the hearing to four hours - for a reduction of $1,650. The Court finds the remainder of the fees objected to by GM to be reasonable.

Accordingly, Plaintiff's motion is **GRANTED** in part. **Plaintiff is awarded $13,915 in attorney's fees.**

Multiplier to the Lodestar:

"The Supreme Court has 'set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award." ' " (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 248.) "The trial court is neither foreclosed from, nor required to, award a multiplier." (*Mikhaeilpoor*, at p. 247.)
Plaintiffs seek a 1.35 multiplier on the attorney fees.

A multiplier to the lodestar is not warranted. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the availability of statutory fees for Song-Beverly cases significantly reduced the risk associated with working on contingency. (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [FEHA fees award].) Therefore, Plaintiff's request for a multiplier is DENIED.

Costs:

		Plaintiff seeks $584.75 in costs via this motion for attorney's fees but have not filed a Memorandum of Costs. "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (California Rules of Court, Rule 3.1700(a)(1).) Plaintiff has not filed a Memorandum of Costs as required under Rule 3.1700. Although there is a Memorandum of Costs attached to Mr. Woo's Declaration, there is no proof of service and the memo was never filed with the Court. Therefore, Plaintiff's request for costs is **DENIED** without prejudice. Clerk to give notice.